Revisiting the Concept of Self-determination in the Palestinian Context: The Role of Civil Society[1]

Policy research paper (2025)

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Executive Summary

This paper reconsiders the concept of self-determination in the Palestinian context by critically examining the role of civil society as a transformative actor in a colonial political reality. The urgency of humanitarian responses in Palestine often overshadows deeper political and emancipatory goals. Yet, the stagnation of political leadership and the erosion of civic initiative demand a renewed understanding of civil society's responsibilities. The paper argues that self-determination must be revisited and redefined not merely as a national project but rather within a trilateral framework which encompasses individual, communal, and national levels.

The research is guided by the need to move beyond reductionist frameworks that equate self-determination with statehood, which risks sidelining personal and social freedoms. It sets out to investigate how Palestinian civil society conceptualizes self-determination and whether it possesses the strategic and intellectual capacity to enable a progressive emancipatory project. Using a literature review and in-depth interviews with diverse civil society actors, this research explores how knowledge, politics, and praxis intersect in Palestinian civil society.

The findings highlight that while civil society actors generally welcome the broadening of self-determination, most lack a comprehensive understanding of its individual and communal dimensions. The dominance of the national narrative, international law frameworks, and donor priorities has contributed to a depoliticization and fragmentation of civic discourse. Many civil society organisations (CSOs), especially NGOs, have shifted from mass-based, politicised entities to project-driven, bureaucratised structures. This has resulted in a loss of autonomy, a decline in intellectual engagement, and weakened transformative capacity.

Despite these challenges, this research identifies a clear recognition among actors of the need for renewal. There is growing demand for civil society to reassert its moral and political role in designing post-colonial futures. Knowledge production emerges as a key tool for this transformation, but it must be organic, participatory, and strategic.

Key Recommendations

1. Reframe self-determination as a holistic, emancipatory process across individual, communal, and national spheres.
2. Revive civil society's political and ethical role through support for autonomous knowledge production, strategic theorisation, and critical public debate.
3. Depoliticization must be reversed by re-establishing CSOs' independence from donor and governmental tutelage.
4. Encourage donors to align their funding with the broader goals of self-determination and emancipation, rather than narrow, issue-specific agendas.
5. Build civil trust by fostering participatory and community-driven agendas.
6. Support civil society not just with humanitarian aid, but with tools for reconstruction, knowledge production, and autonomy.

Introduction

The urgent and the important do not coincide. We tend to put aside tasks and plans that are important for us because something urgent occurred. However, we must consider if this very urgency is a result of acts that aim to hinder our (important) plans. Almost everything in Palestine is a catch 22 situation - a norm imposed by the colonial condition. Freedom requires resisting the colonial power, but resistance requires priorities and limitations that defy freedom. This anomaly led to a deformation of the usual state-civil society nexus, which in turn, deformed civil society. It acts like a civil society, but thinks like a (nascent) state!

In the Arab region, the anomaly is exacerbated due to coloniality's presence and legacy. Arab peoples are trumped by wars, internal conflict, crippled, torn apart, and failed governments. Colonial powers, Israel in particular, practice destruction on an ongoing basis, including the destruction of civil and civic structures, institutions, and resources. Hence civil society's main task is survival. The latter has three levels: the immediate, comprising humanitarian assistance; the short-term involving political survival (that has been coined by Palestinians as *sumoud*) – a basic ingredient of future existence; and the long term, where the quality and sustainability of existence require self-determination.

The only opportunity that destruction provides, is the theoretical possibility to design the future in the process of reconstruction, albeit for that possibility to be realised it is inevitable to have the knowledge necessary to design the attributes of livelihood, not only the political (national), but also the social (communal), and the individual (human) levels.

This paper is structured as follows: first, an outline of the context and the research questions in the section on the problem statement; then an outline of the used methodology; third, a review of the literature on self-determination and civil society engaging with some of the key relevant literature to develop the trilateral conceptualization of self-determination. Next is a presentation of the results of the field interviews with the key Palestinian civil society dialogue participants; and finally, a conclusive section with policy recommendations for civil society actors and the donor community.

Problem Statement

This paper investigates the Palestinian civil society's transformative capacity concerning one of the pillars of its own raison d'etre – the realisation of self-determination, in particular those aspects of self-determination that serve beyond immediate individual survival, and beyond the emergence and maintenance of a state. The aim of this exercise is to identify directions of developing civil society's "organic" (home grown and locally embedded) transformative strategies that support the realisation of the emancipatory aspirations of the Palestinian society. There is a need to vitalise the Palestinian civil society's role in facilitating the enactment of the will of Palestinians, end the colonial condition, and create a balanced representation of plural Palestinian aspirations by countering hegemony over the fate of the Palestinians. It should encounter domination, whether it originates from the occupation, or from local authoritarian powers. Civil society is also expected to develop the tools, and make ready the ingredients of emancipation. These include providing platforms for societal debate, and organisational structures, like professional associations, and social institutions. In particular, it is expected to produce knowledge that supports, outlines, and defines its multifaceted role, and create convictions in the necessity and importance of civic participation. Civil society is there to lead an "organic" transformative endeavour of relevance to its society.

The aspired transformation is multifaceted, and its priorities vary for different actors and societal segments. However, autonomy is by and large the common denominator that legitimises the variety of aspirations, whether they stem from individual or collective choices, and whether they mirror the interests of a particular group or the nation as a whole. To aspire is to will, and autonomy is a prerequisite for will. The choice of the matter of this enquiry - the conceptualisation of self-determination – is based on the assumption that self-determination is the epitomiser of the will to transform. In particular, what this paper examines is the degree to which self-determination is understood in a complex manner that involves individual, collective, and national autonomy.

An obvious obstacle to such a complex and nuanced conceptualisation is the prevailing understanding that limits self-determination to its national manifestation. But the state, which embodies national autonomy, as a political form of collective organisation, does not guarantee the realisation of individual, and communal endeavours for delf-determination. The reality is that while the state should be tasked with the facilitation of self-determination by its citizens, and ensuring the necessary means of its realisation, it seldom engages in practicing the opposite, and in other cases fails in playing its intended role. On the other hand, a main function of civil society is to prevent the state from defying its said purpose.

Investigating the Palestinian civil actors' conceptualization of self-determination, and their perception about their role in achieving it is key to developing strategies for fostering civil society's role in addressing the emancipatory needs of Palestinians proactively, in a manner that instils hope in the "day after", and provides direction. Discussing the future is much needed because the well-known Palestinian common ground of dismantling and overcoming the colonial condition does not speak much to how Palestinians will live and organise within a sovereign entity. Delving into the "day after" requires examining the dynamics of self-determination beyond independence and state formation. Such an extrapolation is necessary in order to reassure a human-centred understanding, and the consequences of such an understanding for political participation, and knowledge production.

Over the past century, the prevailing understanding and definition of self-determination was centred around the nation-state. However, in addition to national self-determination, there are two other aspects: individual self-determination, and communal self-determination. Without

reinstalling these two aspects (forming a trilateral concept), self-determination cannot deliver what it is intended to attain. The polity should facilitate the realisation of individual and communal aspirations, and not suppress or frame them. Modern history demonstrates that suppression and framing are not the exception. In other words, achieving national self-determination does not guarantee personal emancipation and the realisation of communal aspirations that are necessary conditions for a human-centred world. The lately growing populist, oligarchical, and proto-fascist trends in politics point to the urgency of de-monopolising the concept of self-determination through the reemployment of its largely dismissed connotations – individual and communal self-determination.

No contemporary society is immune against right-wing extremism, which conflates against the backdrop of the prevalence of populist politics. Dealing with these phenomena as the problem of "others" only exacerbates the populist and eventually the fascist threats. Additionally, the core democratic component of free will is threatened due to the change in the nature of the nation state in the neoliberal era of globalisation. The growing demand and adherence to non-voluntary, frequently kinship-based identities (tribal, ethnic, confessional, etc.) in the formation of communities, and even state structures, threatens the disintegration of democracy as a political system. It defies the principle of echoing the will of the people.

Organising around combating these threats requires a strong conviction in substantial (not only formal) democracy, the cornerstone of which is a collective free will that forms a polity, and not formed by it. Only a triangulated, as stipulated above, understanding of self-determination, along with and conviction in its centrality, can constitute the canvas for democratic value system that goes beyond the form and the procedure and can result in a human-oriented political system.

A related concern is the deterioration of the place and role of civil society actors over the past period, which was exposed by their weak responsiveness to the Arab dignity revolts of 2010-2011, where they could not play a decisive role in shaping the revolts' outcomes. This deterioration is particularly evident In Palestine (in both the West Bank and Gaza), where the status of civil society, and popular expectations from it contracted. Hence, there is reason to revisit the role of civil society, and the requirements for ensuring its transformative capacity.

In the current turbulence of the (changing) world order, the existence and actions of transformative actors is crucial, especially in a period of democratic erosion, when fierce populist anti-democratic actors are gaining more ground. This situation requires readiness to engage in politics at levels that are not limited to the form of the polity. It rather demands the politicisation of civil society's perspectives and strategies, and the abandonment of the de-political stances that characterised, to a significant extent, the positions of civil society in the past three decades.

While the question of self-determination obviously cannot grasp all issues of relevance to the above-described conditions, it can, if posed as a question about an "emancipatory self-determination" (in the above-mentioned triangular manner), serve the revisiting of civil society's conceptualisation of governance, freedom, welfare, wellbeing, health, education, dignity, and much more. The application of such a conceptualisation to the Palestinian dilemma is self-evident and has "double" (national and social) significance.

Civil society organisations witnessed visible transformations that coincided with the emergence of the new world order, which reflected the triumph of neoliberal politics including the fall of the socialist block, and the resulting unipolar order. The transformations involved a boom in the emergence and growth of non-governmental organizations, and a shrinking of union work, a decline in the role of political parties (in spite of the growth of their number in

numerous countries), amongst other trends. While there is no substantial evidence connecting the transformations in civil society and political parties to the neoliberal triumph, it is self-evident that these transformations and their upshots belong to the era, in which they developed. However, this era is the very same era whose terrifying crisis we are witnessing today. Civil society organisations not only were occasioned by their neoliberal context, but also contributed to its formation and development. As such, the impact of the crisis of the neoliberal order on them is inevitable.

The crisis situation dictates revisiting the requirements for civil society institutions to execute their transformative capacity, and discuss its direction and scope – there is need to outline what is to be expected from civil society organisations concerning their role in changing this world, and contributing to the transition to the next era.

There are two aspects to the work of civil society institutions. These institutions constitute a mediator, or a barrier, between power and its subject, and their further and most important role lies in maintaining the balance and stability of power (or, in Gramsci's expression, maintaining hegemony). There are two ways to stabilize hegemony in the presence of two or more powers: either contributing to the subjugation of the subordinate party to that, which possesses the means of repression; or working to raise the status of the interests of the party that does not possess the means of repression and compelling the owner of the means of repression to adopt the interests of the subordinate to a degree that guarantees the relative satisfaction of the subordinates. These two ways of working of civil society institutions are contradictory, but they coexist. Reality accommodates both paths, and civil society institutions constitute a mixture and a conflict between them.

Research Questions

This paper hopes to answer the following questions:

1. How does Palestinian civil society understand and conceptualise self-determination, and how does the absence of a political perspective affect this understanding in the short and medium terms?
2. How does the diversity of Palestinian civil society perceptions and perspectives affect the possibility of making an emancipatory concept of self-determination the centre of the Palestinian question? To what extent can such a comprehension serve as a strategic component of policy-making processes while still under occupation?
3. How to strengthen the capacity of Palestinian civil society in knowledge production processes and identify long-term strategies to promote its resilience with an eye on self-determination? And how can the understanding of self-determination be intersectional to respond to the diversity within the Palestinian society, i.e. inclusively respond to diverse aspirations coming from women and girls, youth, poor, refugees, urban rural, etc?

Methodology

In order to examine how self-determination is envisioned, defined, and assessed by the Palestinian civil society the research process departed from a literature review towards in-depth dialogues with civil society actors. First a mapping of literature on civil society in Palestine, the Arab world, and global literature was carried out, as was a literature review on the schools of self-determination. The literature review process then fed the development of the conceptual framework which was used for the field work. A sample of Palestinian civil society representatives was selected, and field work was initiated by conducting interviews from the selected sample. From there data was analysed using qualitative analysis and a comparative matrix. Finally, the data was distilled to produce policy recommendations.

In regard to the sample, it represented the variety of civil society actors. The group of interviewed persons included a variety of actors, such as university professors, civil society workers, public figures, activists, etc. The selection criteria involved the sector of activity (health, agriculture, water, gender, education, marginalized groups/refugees/Bedouin, etc,), geography (Area C, Urban areas, North/Central/South WB), demographic diversity (gender, age, socio-economic conditions). The sample was approached, and presented with a concept note that stipulates the central idea behind this research and its goals. Research ethics consideration, and a consent request.

The political situation, as always is the case in the colonial condition, had its toll on the research process, which took place during an exacerbated Israeli aggression on the Palestinians. In addition to the depressive effect of the genocide which continues to unfold on a large scale in Gaza, direct Israeli army, and army supported settler attacks in the West Bank forced the research team to carry out several interviews via digital platforms. Interviews with colleagues in the Gaza Strip was simply impossible!

Despite these serious obstacles, over 15 interviews were conducted with key stakeholders from civil society during the research period. Dialogue with interviewees was used to distil how Palestinian civil society actors define and assess the concept of self-determination in the absence of a political process in short and medium terms, and considerations concerning the need to strengthen the capacity of Palestinian civil society in knowledge production processes. The data from the interviews was then transcribed, classified into a data matrix with the main themes of the dialogues serving as headings (most of them predetermined, but some emerged from the dialogues and were not initially intended). The data was analysed in light of the conceptual framework adopted by the research team and enriched by the literature review, which aimed at reviewing relevant literature on civil society, and on self-determination.

Conceptual Background

Self-determination

The prevalence of the "national" in the understanding of self-determination, dating to the beginning of the twentieth century, shadowed the "original" (personal) significance of self-determination that held a central position within the liberal doctrine, and the less developed concept of collective (communal) self-determination that underpinned the notion of social democracy.

The Merriam-Webster Dictionary provides two definitions for self-determination:

> *1: free choice of one's own acts or states without external compulsion;*
> *2: determination by the people of a territorial unit of their own future political status.*[3]

The second definition arose first in the middle of the nineteenth century,[4] with the first use occurring in 1911,[5] while the first definition goes back to circa 1680.[6] In all cases "self-determination, in essence, refers to acting based on one's own mind or free will, without external compulsion."[7]

Towards the end of the 19th century, the focus in discussions about self-determination shifted towards the question of collective self-determination (mainly national self-determination) due to political-historical reasons related one way or another to the nation (and the) state.

The post WWI reality dictated a need to provide new and better arguments that legitimate coloniality, and invent new techniques for its maintenance. Significant restructuring of the world order took place in the post-war period to fulfil several functions: (a) establishing means and techniques to control the territories of the defeated empires, (b) answer the challenge posed by the Bolshevik victory in Russia, and its expansion into the Soviet Union soon after, and (c) settling geopolitical accounts between the colonial victors. In these conditions, self-determination acquired its national connotation, boosted by several factors amongst which was the "confluence of socialist and liberal ideas of self-determination,"[8] that made self-determination "a doctrine that applied first and foremost to nations, and only subsequently to individuals."[9]

The picture significantly changed after WWII. It was not only a socialist - capitalist "complot", but also a colonial - anti-colonial concourse. The subsequence of individual self-determination became globally dominant along with the normalisation of nationalism and the nation-state. In (and for) this contest, liberalism overcomes its libertarian assumption concerning the centrality

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[3] Merriam-Webster, "self-determination," *Merriam-Webster.com Dictionary* (n.d), https://www.merriam-webster.com/dictionary/self-determination (accessed 4 April 2022).

[4] Jörg Fisch, *The Right of Self-Determination of Peoples: The Domestication of an Illusion* (New York: Cambridge University, 2010), 8.

[5] Michael Wehmeyer, "Beyond Self-Determination: Causal Agency Theory," *Journal of Developmental and Physical Disabilities* 16, no. 4 (2004): 341.

[6] Etymonline, "Self-determination," *Etymonline (Online Etymology Dictionary)* (n.d.), https://www.etymonline.com/search?q=self-determination (accessed 13 June 2022).

[7] Wehmeyer, "Beyond Self-Determination," 340.

[8] Eric Weitz, "Self-Determination: How a German Enlightenment Idea Became the Slogan of National Liberation and a Human Right," *The American Historical Review* 120, no. 2 (2015): 464.

[9] Ibid.

of the individual for the sake of its commodified form and its essential function of competition in the market.

Self-determination is not a state of being (a status), but an act of becoming (a process) – an execution of a will. The maintenance of its achievements or realisation within an entity of a singular (including individual) magnitude requires external recognition by the surrounding entities. Such recognition necessitates a certain legitimation of the acts that the process of self-determination needs. However, legitimation requires a collective. This is one rationale for the idea of collective self-determination: "individual and collective self-determination are inextricably bound together."[10]

The emergence of the nation-state, amongst other factors belonging to the same epoch, instituted change, which made a "world order" possible towards the end of the fifteenth century.[11] Within this historical framework collective self-determination acquired two different, albeit interconnected, and in apart overlapping forms: liberal and socialist, or nationalist and internationalist. The differences between the opposing perspectives concern various aspects, including the functions of self-determination that range between coloniality and emancipation, the criteria of the collective formation ranging between class and blood, and the geography accordingly. However, all the differences found their reflection in the magnitude of the perceived self-determination and in the social/individual pre-eminence in the formation of the collective self-determining entity. The liberal perception gave pre-eminence to the individual – the citizen to be, while the socialist perception gave ascendancy to the society, both at the level of ideology. In practice, both gave priority to the state.

The notion of collective consciousness is crucial for understanding collective self-determination and the processes of its realisation. Various forms of political organisation provide a solution to the problem of discordancy between the abstract notion of "public will" and the concrete nature of its realisation through collective self-determination. What spawns discordancy is the absence of a concrete carrier of collective consciousness that embodies the collective will, and the lack of an "organic" quality of the bearer of this will. The existence of a concrete carrier is a necessary condition for objectifying the will through its formation, stipulation, and negotiation with other collective wills for the formation of the "public will".

The nature of the carrier, which is necessary for will representation, depends on the magnitude (quantity and substance) of the collective. While state institutions might be the appropriate carrier for the expression of the "national will", unions are likely to be better for the expression of various professional strata, parties for the expression of class type interests, and committees or municipalities for expressing communal wills. The common denominator of the various forms of political organisation is their ability to substitute (or expand) the harmonising capacity of the organic body (the holder of the free will of the individual member of the self-determining collective).

However, the representation of the free will cannot be reduced to the coercive legal form that the state adopts. Hence, there is a necessity to maintain a voluntary, non-coercive representation of the free will, whether it is an individual will, or a collective one that forms the collective consciousness. This function is taken up by the civil society (discussed in more detail below).

The idea of collective self-determination is, inter alia, a natural response to colonial collective repression, especially because class and national emancipation are intertwined. "Self-

[10] Ibid, 476.
[11] Immanuel Wallerstein, *World-Systems Analysis: An Introduction* (Durham, London: Duke University Press, 2004), 42.

determination is then an historical instance of counter-power, which endangers the imperial self and endows the non-self with the attributes of a resistant and militant self. Self-determination becomes opposed to 'alien' determination of the self."[12] De-colonial self-determination is a necessary, albite insufficient, condition for emancipation, because eliminating foreign hegemony does not guarantee the absence of local hegemony.

Historically, the political concept of self-determination rested with the liberal tradition while maintaining its anticolonial stance. The dominance of the liberal tradition's fervour for self-determination amongst anti-colonial movements resulted in two major drawbacks: losing the emancipatory momentum and leading to statism (and nationalism); and suppressing individual and communal self-determination.

The nation, which is the subject of national self-determination is a "collectivised group" – "an imagined political community – and imagined as both inherently limited and sovereign."[13] This imagined construct is a result of abstraction, which amalgamates several elements, and presents them as possessing common features such as language, history, territory, culture, ethnic similarity, and even an "average personality".[14]

Contrasting natural collectives, such as society, the nation requires mediating elements for its bonding into an entity. One central mediating element is law, which facilitates the bonding of the nation (within the state) as well as the relations between states (international law). Law itself requires a master (the sovereign), and needs external legitimation, which international law and institutions, amongst other elements, serves. International law understanding of self-determination contradicts, in essence, the notion of self-determination as a process of realising the free will of nations, because it "is the legal form of the struggle of the capitalist states among themselves for domination over the rest of the world".[15] Moreover, international law deals in effect with the states as perceived polities and not with nations constituted of people(s). The cases of Palestine (especially today), Kurdistan, the Tamil, the Quebecois, the Western Sahara, inter alia, serve as evidence of the incapacity of international law, and its instruments, to grant or even facilitate the practice of self-determination. National self-determination in international law is contingent on such contested and frequently negotiated concepts as ethnicity, territory, sovereignty, hegemony/consent, and statehood. Land and blood are the kernel of this conceptual web, albeit frequently secularised.

We can functionally define national self-determination as the process of ensuring the means to realise the will of the self-determined entity in conditions of sovereignty, which functions in the environment of governmentality that is conducive for the negation of self-determination's autonomy. Other attributes of national self-determination, such as territory and the people (comprising the nation), and the need for security, coercion, etc… are necessary for the existence of the state, but are not actually attributes of sovereignty (although they are attributes of the sovereign), nor constitute a logical condition for self-determination.

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[12] Upendra Baxi, "'The Dust of Empire': the Dialectic of Self-Determination and Re-colonisation in the First Phase of the Cold War," In *International Law and the Cold War*, eds, Matthew Craven, Sundhya Pahuja and Gerry Simpson (New York: Cambridge University Press, 2020), 407.

[13] Benedict Anderson, *Imagined Communities: Reflections on the Origin and Spread of Nationalism*, 2nd edition (London, New York: Verso, 2006), 5-6.

[14] Christian Jarrett, "Different nationalities really have different personalities," *BBC Future* (13 April 2017), https://bit.ly/4lHYuQT (accessed 8 May 2022).

[15] Evgeny Bronislavovich Pashukanis, "Selections from the Encyclopaedia of State and Law," In *Pashukanis: Selected Writings on Marxism and Law*, trans., Peter B. Maggs, eds., Piers Beirne and Robert Sharlet (London: Academic Press, 1980), 168.

The invention of the nation in the individualist scheme of capitalist modernity happened apparently at the cost of the community. Capitalist modernity, comprising industrialisation and the colonial ambition, involved the suppression of the communal social unit. Modern structures of domination required the atomised supply of wage labour and the totalised nation of the centralised state. Under colonial practices, singularisation and individualisation were "efficient" techniques. The dismissal of the communal magnitude was necessary not only for colonial settlement, but also for the imperialist redistribution of territory.

The construction of any entity entails a degree of mediation and objectification – techniques that can transform individual wills into a collective one, which does not spring unaided. This is especially true for the emergence of a national will. On the other hand, the emergence of a communal collective will, while requiring the same techniques, needs a much humbler magnitude of them compared to what constructing national will requires. The community's everyday is its politics, and its everyday free activity is a practice of self-determination – this means that socialisation alone can be sufficient to fulfil the mediation and objectification of a community. For this very reason of "simplicity" and minimal mediated relations, the community should serve as the unit of analysis of collective self-determination. The coercive bundling of the community into a nation (of a state), which modernity imposed, forced collective self-determination to lose its natural demeanour, and made it dependent on the sovereign. However, coercive membership of a nation cannot replace the organic relations that constitute a society.

We can conclude that there is a need to identify a social collective of a magnitude other than the national – an entity that is not contingent on what makes it derivative in relation to the state, perceived in a light that does not conform with the modernity doctrine. Such a collective must possess the features that permit it to be a self-determining entity. These features include self-sufficiency (capability of social reproduction), the possession of a free collective (united) will, and self-formation. The latter, being an autonomous act of association, requires the collective to form (without necessarily existing beforehand) a "true" (not only imagined) community.

The term communal implies that "the right to self-determination should not be confined to achieving political independence and separate statehood."[16] Collective self-determination has an essential social nature, which is primary in comparison to the form of political organisation – i.e. political organisation requires the existence of a society, and cannot exist without it, while the opposite is not true. The nation-state, where the town becomes the "city", and the burgess becomes the "citizen", is one such form. There are at least three reasons for contemplating a polity other than the nation (as the form of political organisation). The first reason is the need for a collective self-determining entity, which is not singularised or totalised, and which does not supress and objectify individual self-determination. The second is the need to identify a true (not imaginary) community. The third reason is the existence of evidence of crises, and the looming demise of the nation state as the realm of self-determination. Witness of this is the growing motivation for indigenous rights, and the resurfacing of the idea of peoplehood, with the frequently implicit assumption that the "people" form a community other than the nation. The re-emergence of various kinship roles, especially in war-torn societies is further witness to the insufficiency of the nation state for realising satisfactory self-determination, albeit replacing the nation with archaic and outdated communal forms does not solve the problem. The above-mentioned phenomena testify to the crisis, but do not constitute a roadmap to its resolution. Such resolution should be taken up by the civil society.

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[16] Abdullahi Ahmed An-Na'im, *Proselytization and Communal Self-Determination in Africa* (New York: Orbis Books, 1999), 24.

When examining concrete self-determination questions (like the Palestinian question), a common observation is that considerations of external determination, which provide the form of self-determination (the state), override the internal substance of self-determination understood as the realisation of public will. Different subjects, i.e. potentially conflicting wills, define the form and a substance (content) of self-determination, and thus, generate the self-contradictory nature of national self-determination. This contradiction poses a significant limitation on the possibility of achieving freedom, as a voluntary act of self-determination. "There is but one law which by its [the general will's] nature requires unanimous consent, that is, the social compact; for civil association is the most voluntary act in the world."[17]

Civil Society

Civil society is an abstract and quite fluid concept that has multiple denotations, and overwent significant re-conceptualisations over time. What interests us in this paper stems from ideas and conceptualisations that emerged over the past three and half centuries.[18] They all relate to the question of the relationship between the state and the society. Their variations have different standpoints and focuses, but they do share the notion of the autonomy of the society along with its various elements (individual, family, associations, religious institutions, economy, etc.), protecting it from state tutelage. They also share a view on requirements of such autonomy, like freedom, the existence of rational-critical debate, social cohesion, democracy, and collective identities.

Civil society represents something that is distinct from the state, but relative to it. It is what embeds the "pre- or non-political identity"[19] of the nation – an embodiment that contains a tension between two directions: "one moves towards the norm of self-determination; the other towards the goal of marginalizing the political."[20] In this sense understanding civil society can be realized through understanding the nation-state as a dialectic binary of the nation and the state. To use Gramscian terms, if the state represents legality, civil society represents reality.[21] It represents "the ethical content of the state,"[22] but in "concrete historical life, political society and civil society are a single entity."[23] Being the realm of the real and the ethical ingredient of hegemony (the nexus of the political and the civil society), civil society is a generator of change, and a guardian of rights, or as Tylor puts it, of "equilibrium and change."[24] Civil society "secures the bonding of the organic intellectuals of a social group with traditional intellectuals, a function … to lift the 'economic' members of a social group to the level of 'political intellectuals,' that is, organizers of all the functions intrinsic to the organic development of an integral civil and political society."[25]

It is this epitome of civil society, that makes the obvious candidate to realise and engage in developing and grounding the above-proposed triangulated concept of self-determination. While the distinction and delineation of civil society from the state is conceptually necessary,

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[17] Jean-Jacques Rousseau, *The Social Contract and The First and Second Discourses*, ed., Susan Dunn (New Haven and London: Yale University Press, 2002 [1762]), 229.

[18] For an overview of the modern origins and development of the concept of "civil society", see: Charles Taylor, "Modes of Civil Society*,"* *Public Culture* 3, no. 1(1990): 95–118.

[19] Taylor, "Modes of Civil Society*,"* 112.

[20] Ibid.

[21] Antonio Gramsci, *Prison Notebooks (Vol. I)* (New York: Columbia University Press, 1992), 214.

[22] Antonio Gramsci, *Prison Notebooks (Vol. III)* (New York: Columbia University Press, 2007), 20.

[23] Antonio Gramsci, *Prison Notebooks (Vol. II)* (New York: Columbia University Press, 1996), 182.

[24] Taylor, "Modes of Civil Society," 107.

[25] Gramsci, *Prison Notebooks (Vol. II)*, 202.

its (relative) autonomy is not guaranteed at all. Maintaining the "pre-political" capacity of the society is a necessary feature of the state if the latter is to serve the nation, rather than making an instrument in the service of the sovereign out of it – a typical characteristic of oligarchy. In order for civil society to perform in this capacity, it ought to ensure its differentiation from the state, and maintain its civil nature. Civil society refers to civil (not militant or coercive) societal structures. It, thus, excludes all branches of the state and any apparatus that belongs to it, and any militia-like or mafia-like structure. The concrete incarnate of civil society's role of the "ethical content of the state", and "autonomy protector" are civil actors who initiate, organise, and practice counter balancing the drive to absolutize the political.

Belonging to one or another formation of civil society is voluntary, and self-initiated. As such, civil society members can be individuals and groups, whether they constitute legal persons or potential legal persons (citizens, and registered organisations) or not (persons without citizenship, and unregistered groups – whether legal or not, including groups that organise across more than one jurisdiction). Intrinsically, membership of civil society cannot be based on kinship (family, tribal, ethnic, etc.) criteria.

The conceptualisation of civil society assumes the existence of "non-civil" structures (such as the state), from which the former is demarcated, to which it is counterposed, and which it aspires to (re)form, shape, and hold accountable. However, because the state tends to subsume civil society, and sometimes succeeds in containing it, the latter is transformed in a way that routs it away from its nature. Examples of this are, inter alia, corporatisation, juridification[26], and reduction. The latter is a living example nowadays when civil society is reduced to non-governmental organisations that are registered, constitute a legal person, and bureaucratised. But our understanding of civil society is broader.

In this text, the term "non-governmental organizations" (NGOs) refers to non-profit organizations that see themselves as professional organizations, rely on funding for their work, and carry out their activities through "projects." These organizations are a type of "civil organizations" (COs), which include, in addition to NGOs as defined above, organizations that rely on voluntary and charitable work, such as unions and clubs. Civil Society Organisations (CSOs) include, in addition to COs, organizations such as universities, cultural centres, museums, and the like, as long as they are non-governmental and non-profit. All these organisations exclude political organizations such as parties, factions, and party coalitions, and any group that seeks political power, or is likely to hold it, and they also exclude any organizations whose membership conditions include non-voluntary criteria, or those that have hierarchical structures (including religious organizations that fall under this criteria).

The subject of this paper is not these institutions in general, but rather their transformative role in facilitating the development and fostering of autonomous free will(s), which eventually institute the carcass on which political sovereignty is erected. This is the very carcass of legitimacy, which encompasses legality and morality. It is this two-fold nature what makes modern citizenship possible.[27] For the reason that the nature of legality is coercive, the free will, which the political power is supposed to represent, hinges on the protection of the autonomy of its constituents, whether they are private or public. This protection is the moral duty of civil society, particularly in the state where "laws of freedom obligated men to

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[26] ´The expression 'juridification' *[\errechtlichung]* refers quite generally to the tendency toward an increase in formal (or positive, written) law that can be observed in modern society." See:
Jürgen Habermas, *The Theory of Communicative Action, Volume 2: Lifeworld and System: A Critique of Functionalist Reason,* trans., Thomas McCarthy (Boston: Beacon Press, 1987), 357.

[27] Jürgen Habermas, *The Structural Transformation of the Public Sphere: An Inquiry into a Category of Bourgeois Society*, trans., Thomas Burger (Massachusetts, Cambridge: MIT press, 1989), 111.

undertake themselves."[28] The development of law in the framework of the modern state "did not consist in an ever growing quantity of morality but exclusively in an increase of the products of legality."[29]

The two-prong legitimacy requires a certain degree of autonomy of its components, and harmony between them. However, such autonomy and harmony cannot be achieved under the colonial condition. This is the main reason why the Palestinian civil society cannot serve the above-mentioned harmony, and the same the same remains true after the emergence of the Palestinian Authority (PA), which did not put an end to the colonial condition. "The 1994 establishment of the … PA in the West Bank and Gaza Strip … created a huge shift in terms of setting the structural conditions for civil society."[30] Since the emergence of the PA on the background of the Oslo Accords, the tense relation between the two foundations of legitimacy became complex due to the jurisdictional duality, and the subordination of the Palestinian jurisdiction to Israeli power.

Prior to the emergence of the PA, Palestinian civil society served its moral duty of dissociating from the legal postulates and structures of the occupier's law. After the emergence of the PA, a fused situation arose, where the PA became a holder of jurisdiction on one hand, and a subordinate body to colonial dominance on the other. This led to a schism in the Palestinian civil society's moral obligation: harmony and dissociation with the existing political structures at the same time, resulting in an undeclared (although well recognised) crisis and deterioration of the Palestinian civil society. Not only did the externally conditioned birth of the PA pose the dilemma resulting from the co-existence of two different powers that pose opposite duties on civil society, but the PA acted actively on ensuring that "civil society is institutionalized as a sphere of legally domesticated, incessant competition between strategically acting private persons, the organs of state, organized by means of public law, constitute the level on which consensus can be restored in cases of stubborn conflict."[31]

There are other factors that exacerbated the crisis of civil society. While these factors have a range of different upbringings, they are all connected to a global context, in which "the state-civil society dualism more or less disappeared from the mainstream of political discourse."[32] One of the features of this global context, especially, its neoliberal version, is that considerations of regulation override those of rationalism. On the backdrop of this context, CSOs were factually reduced to NGOs, which were singled out as the "eligible" counterpart for political structures in the political-moral formula. In this process CSOs, but especially NGOs, adopted the "rule of law" framework, accepted rigid legal frameworks in their endeavour to gain legality (rather than suffice with legitimacy), adopted "corporate" techniques required for the "partnership" with political structures (like the government), and became de-politicised instead of fulfilling their original role of depoliticising the political system, or "marginalizing the political."[33] The dependence of NGOs, and some other CSOs on donors, who share the drive to regulation, fosters the impression that civil society consists of NGOs.

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[28] Ibid., 109.

[29] Ibid.

[30] Michael Schulz and Lina Suleiman, "Palestinian NGOs' Changed Work Dynamics: Before, During, and beyond the Oslo Process," *Middle East Critique* 29 no. 4 (2020): 436.

[31] Habermas, *The Theory of Communicative Action*, 178.

[32] Ellen Meiksins Wood, "The Uses and Abuses of 'Civil Society," In *Karl Marx*, by Kevin B. Anderson, ed., Bertell Ollman (London: Routledge, 2017), 351.

[33] Taylor, "Modes of Civil Society," 112.

The picture, which unfolded in the aftermath of the emergence of the PA reminds of Gramsci's description of the conditions of the Italian civil society in the period preceding WWI:

> *... this same civil society was something shapeless and chaotic and remained so for many decades; it was therefore possible for the state to dominate it, overcoming each time the contradictions that presented themselves in a sporadic, localized form, without any national nexus. Not even clericalism itself, then, was the expression of this civil society, because it was not able to organize it nationally, however much it might have been a strong and (formally) compact national organization. In the meantime, this organization was not politically homogeneous and was fearful of the same masses which, in a certain sense, it dominated.*[34]

In such a context one cannot expect civil society actors to be able to fulfil a role and duty that are contingent on non-existing grounds: sovereignty, and the unity of the political framework. Without these grounds, civil society does not possess the ability to constitute the second element (with the political society) of hegemony, and it is impossible for it to play the "harmonising" role, and seek to bring about "equilibrium."

The two non-political[35] components of self-determination, the individual and the communal are the very object of civil society's moral obligation. One can envisage the nature of the two-fold nation-state consisting of the coercive power (the state) and the moral power (the nation). The latter is what self-determination expresses, as Taylor put it:

> *Between 1776 and now, the notion of a people's pre-political identity has taken a new and much more powerful form, that of the nation. We now speak of this right to make and unmake structures as the right of self-determination.*[36]

While the state is responsible for the political, the maintenance of the "pre-political" is the responsibility of civil society, and this pre-political civil society is made up of autonomous individuals and the collectives they belong to – communities. Both of them are prerequisites of the state, which with the legitimacy that civil society provides constitutes a nation state, which in turn makes civil society vital. This is why the Palestinian civil society cannot escape the battle for the state as a matter of existential necessity, no matter how this task seems counterintuitive. However, adopting this battle comes with a price.

[34] Gramsci, *Prison Notebooks (Vol. I)*, 214.

[35] A note of caution is due here: non-political and pre-political do not signify de-political, but rather the notion of the existence of a certain quality/problem/role/etc. independently from the existence of the polity (either before its emergence, or regardless to it). It is a notion referring to a "natural" phenomenon.

[36] Taylor, "Modes of Civil Society," 111.

Discussion of Field Findings

In this part of the paper, we will delve into the discussion about how civil society actors perceive this complex picture of their role, and their nexus with the political. Beforehand, it is important to note that the nation, which figures in the above discussion is a several century old construct that belongs to modernity. Its role was played by other structures before modernity and can very well be played by different structures after modernity. But in all cases, as long as there is a polity, the nexus of law and ethics, or of coercive and moral powers, etc. is inevitable, and hence the inevitability of civil society or its equivalent.

In dialogues with civil society actors, the general reception of the idea of a three-prong concept of delf-determination was positive and welcoming. One counterpart even said that it comes belated, because there was need for paying attention to the individual and communal aspects of self-determination a while ago. This could have prevented the deterioration of personal and collective freedom, which face growing restrictions.[37] Similar logic was behind calls to expand the discussion on the triangular understanding of self-determination.[38]

There is clarity that political independence does not guarantee self-determination, and that the latter is coupled with a comprehensive understanding of (indivisible) rights. The realisation of self-determination requires, for example, the implementation of the right to return,[39] not to mention civil and political freedoms, and socio-economic rights.

Lack of comprehensive understanding of self-determination

Nonetheless, a common takeaway from all encounters with civil society actors is that they (and others) did not reflect, in depth, on the understanding of self-determination. While they understand that national self-determination does not suffice for the establishment of freedoms,[40] and that freedom is the core issue,[41] there is general agreement that under occupation, there is prevalence for the task of national liberation, which is discursively and conceptually connected to national self-determination.

Having said this, the monopoly of the national in the understanding of self-determination is not absolute. The dialogues registered various notes concerning the intersection between individual rights (such as gender rights) and the notion of individual self-determination.[42] There were reminders that collective rights include individual rights.[43] However, the conclusion that there is a lack of a comprehensive understanding of individual and collective self-determination is unavoidable. It is, probably, the almost exclusive focus, in civil society's work, on separate rights issues, such as, inter alia, gender, or the disabled, that facilitated or deepened the disconnection of understanding that these rights, in their wholeness, form the right to self-determination, and fostered an abridged understanding of the latter as a particular national right, "not even in the proper meaning of national".[44]

The prevailing discourse in Palestine gives more weight to the "Palestinian identity" than it gives to self-determination and its other essentials. One participant said that "for me, the

[37] Interview 14, by Omar Qassis, Online, 24 October 2024.

[38] Interviews 4 & 13.

[39] Interview 9, by Ahamd Atallah, Bethlehem, 21 October 2024.

[40] Interview 13, by Omar Qassis and Rania Qadi, Online, 14 October 2024.

[41] Interviews 4 &5.

[42] Interview 4, by Ahmad Atallah and Mudar Kassis, Ramallah, 27 October 2024.

[43] Interview 6, by Ahmad Atallah. Omar Qassis, and Mudar Kassis, Ramallah, 3 October 2024.

[44] Interview 9.

collective right to self-determination is elevated to the sacred, because I need to preserve my identity."[45] This identity is evidently "national", and hence the prioritisation of national self-determination. According to Dana, "civil society actors centered the production of knowledge on an indigenous field that entailed emphasis on the originality of the local culture and values as a cornerstone for the affirmation of national identity."[46] But the affirmation of the identity is not value free. It rather possesses a "social aspect, which reflects the nature of the society."[47]

In the Palestinian context, it comes to no surprise that the concept of self-determination is associated with international law. However, the meaning and implications of self-determination in international law are not clear given the nexus of the nation (the people) and the state.[48] Some participants even expressed their fear that framing the Palestinian question as one of self-determination diverts attention from the main cause - freedom.[49] Another reason for scepticism in the utility of the concept it the conviction that no real and full self-determination for the Palestinians can be realised in the current status of power relations.[50]

One can add "extra-cognitive" reasons for the fragmented or reduced understanding of self-determination. For example, the impact of donor agendas, many of which disconnect rights from self-determination.[51] This disconnection seems to be expressed in the web of donor-recipient interactions, and ends up institutionalised in some NGOs.

However, it is clear that civil society actors in general realise the limitations of national self-determination, by expressing a notion of incapability of overcoming it. The need to be "practical", and attend to urgent vital questions, pushes civic actors away from contemplating the very concepts and principles that guide their practice. One participant explained that "we work with persons who suffer direct violations, and it is not easy or simple to keep in mind that these persons are part of the collective struggle for self-determination."[52] This notion of "our hands do not get to the matter" resonated in different forms: "all we can do is to try to minimise harm, and not even prevent it. … Especially for those who use legal tools, … the utmost that we can achieve is the implementation of the law, but if the law is unfair and unjust, then you are inflicting harm."[53]

Deep intellectual discussions do not seem to be popular in CSOs. There is a noticeable nostalgia for times when intellectual debates were standard practice amongst civil society actors. One participant said:

> *There is no room for such discussions today. Even if it takes place, it cannot lead to anything. Civil society became domesticated. Not politically domesticated. People still think, and no agenda was imposed, but our thinking changed. This is the most dangerous. We succumbed to this change willingly.*[54]

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[45] Interview 12, by Omar Qassis, Ramallah, 2 October 2024.

[46] Tariq Dana, "The Structural Transformations of Palestinian Civil Society: Key Paradigm Shifts," *Middle East Critique* 24, no. 2 (2015): 205.

[47] Interview 12.

[48] Interview 10, by Ahamd Atallah, Bethlehem, 21 October 2024.

[49] Interview 3, by Omar Qassis, Ramallah, 23 October 2024.

[50] Interview 7, by Omar Qassis, Ramallah, 31 October 2024.

[51] Interview 9.

[52] Interview 1, by Omar Qassis and Rania Qadi, Ramallah, 7 October 2024.

[53] Interview 5, by Omar Qassis, Ramallah, 25 October 2024.

[54] Interview 10.

Another participant noted that domestication can be observed in the terminology that we use and the policies that we adopt, without questioning whether they fulfil their purpose.[55]

There are also convictions that the framing of the Palestinian question using self-determination is wrong. The rooted nexus of the nation and the state renders the idea of self-determination altogether problematic for some Palestinians. They see self-determination as part of a "package" that is imported, and relates to the modern state, and includes, inter alia, "civil society" and "self-determination".[56] Calling for self-determination can be perceived a possible drawback from the goal of liberation.[57]

For others, the fear is that the realisation of self-determination in the context of a perceived two-state solution will divide the Palestinian nation [consisting of Palestinians in the West Bank, Gaza, Israel and the diaspora],[58] especially that national self-determination is viewed through a legal lens, particularly that of international law.[59]

In addition, there is a perceived connection between self-determination as something enshrined in international law, that also serves as the framework for the two-state formula of solving the Palestinian question. In addition, there is the widely believed claim that the Oslo process happened under the patronage of international law.[60] The combination of these considerations/perceptions leads to a sceptical relation to self-determination.

To conclude, the lack of comprehensiveness in understanding self-determination is not solely a question of knowledge, but rather, partially, is a result of seeking a comfort zone, alignment with the mainstream or avoiding challenging it, and playing to the ears of the public and the donors and the political structures. Overcoming the reductionism requires a stronger commitment by civil society to their emancipatory role understood in universalizable terms, i.e. going beyond the pressing issues of here and now (Palestine in the colonial condition) towards the future of here and there (they day after seen in a global context).

Transformations of civil society organisations

The above-mentioned crisis of the Palestinian civil society, which is linked to multiple reasons and circumstances, manifests itself, amongst other things, in the agendas and priorities of civic actors. The question of self-determination is not central on their agenda, although it does serve as a guiding principle for some.[61] "Civil society moved away from the major national questions and issues."[62] Anything that requires a collective will or vision is dropped from the agenda:

> *There is no complementarity in the programmes of CSOs, and there is no umbrella for the coordination of different types of work in various sectors (women rights, children rights, water, etc.) so that there can be a unified national vision and direction. On the contrary, there is competition (not the healthy type).*[63]

A similar idea was voiced by another participant:

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[55] Interview 3.

[56] Interview 8, by Omar Qassis, Ramallah, 25 October 2024.

[57] ibid.

[58] Interview 13.

[59] Interview 1.

[60] Interview 5.

[61] Interview 9.

[62] Interview 15, by Omar Qassis, Ramallah, 13 October 2024.

[63] Interview 11, by Omar Qassis, Online, 7 November 2024.

> *As if the civil sector was privatised. I, as a woman, work separately from labourers, students, etc. We do not have the capacity to attract the new generation, because we transformed from 'idea holders' [and ideal holders], to institutions.*[64]

There is a strong conviction that civil society underwent significant changes after the emergence of the PA. The symptoms of this change include the shift of CSOs from politicised mass organisations engaged in popular resistance to depoliticised professional organisations,[65] a shift in the focus from the total collective right to selective and individual rights,[66] and a shift towards reform questions, that do not require a public constituency.[67] The shift towards reform is connected to an affable relation with the executive, which situates the civil society in the service of subjugation.[68] The symptoms also include the emergent control by the PA,[69] that "created an iron wall between political and social work."[70]

The situation got worse with the radicalisation of internal divisions, the absence of a national agenda, the degradation of global interest in the Palestinian question (until late 2023), and the corresponding partial withdrawal of donors, and most importantly, the gloomy political perspectives had their toll on the Palestinian civil society.

However, is important to note here that there is no consensus on the absence of political perspectives. Some see resistance as the perspective, [71] or consider that missing a compass and a plan of action, does not amount to lacking perspective.

Others emphasised that perspectives can be created. One participant described the situation as intractable, and needs thinking outside the box.[72] Another noted:

> *... the problem is that we see only two options for a perspective: that of the PA, and that of the opposition. We see no perspective if these two options are obstructed, and become frustrated. However, civil society should create a new way out of the deadlock. Most probably this way should avoid succumbing to the colonial condition, and avoid attempting to face a mighty state physically, but rather concentrate on rights.*[73]

The political deadlock obfuscates the conceptualisation of self-determination, and renders it unworkable for some. This problem is voiced in multiple nuanced forms that are related to the lack of clarity concerning the political resolution of the Palestinian question. The most intuitive reasoning is that the Palestinian civil society is struggling to end the occupation, and possesses an elaborate mechanism for promoting this struggle, but it does "not discuss in any depth the question about what we want after the occupation ends."[74]

Since a vast majority of civic actors, especially those who belong to CSOs, and in particular those who belong to NGOs, are activists, they tend to be pragmatic and plan in accordance with the real politique, which is miserable. From such a perspective there is not much to build hope

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[64] Interview 12.

[65] Interview 4.

[66] Interview 12.

[67] Interview 5.

[68] Interview 11.

[69] ibid.

[70] Interview 4.

[71] Interview 8.

[72] Interview 5.

[73] Interview 11.

[74] Interview 10.

on. The way out requires more imagination, or as several participants noted, "it needs thinking outside the box":

> *Israel has created a reality of control and domination that is very hard to dismantle. The two-state solution is not a realistic option, neither is the single bi-national state. Theoretically, there are alternatives to national self-determination, like the ethnic-based cultural self-determination, but we need to delve into theorizing these questions. This will be challenging but worth the effort.*[75]

While the absence of political perspective (and a national plan of action) will discourage the majority, it will prompt others for becoming more active.[76] The crisis, or the peak of the deadlock, especially on the backdrop of massacres in Gaza, pushed many civil society actors to more radical discussions. Some of them see the presented triangulated concept of self-determination as a good starting point in a process of revisiting the Palestinian political agenda. "It is an opportunity to think exactly about these issues. Where are we heading? What are we doing? What is our destiny? What is our future?"[77]

Another factor that led to transformations of the civil society, is the funding. According to some participants, funding led COs to break into two categories, not only based on their dependency on funding, but there are organisations that appeared to receive funding. One category includes COs that are not NGOs, but rather constituency-based organisations, and those NGOs "that emerged as mass movements, and are still true to their mission".[78] They tend to be selective in their choice of donors, and negotiate funding terms to fit their agenda and align with certain principles (including political stances).

The second category does not possess any agenda other than a donor-driven one. These are the organisations that serve as one of the reasons for the popular disappointment with CSOs and distrust in them. They also seem to play a role in the deterioration of the intellectual rigor of civil society, its depoliticization, detachment from core questions, and the fragmentation of issues that implies the disconnection of individual rights and self-determination, and a reduced understanding of the latter.[79]

Donor-led agendas are categorised as de-politicised, thus there was a depoliticising impact by the donors on NGOs, but this was not the sole factor leading to depoliticization.[80] Another important mentioned factor was the PA policies.

There is also a partial belief that donor funding, that supported NGOs, but not all types of CSOs, especially not COs, played a central role in the reduction of the understanding CSOs to NGOs, which many participants criticised. There is an assumption that the lack of trust in civil society is a result of this reduction.[81] This logic is fortified by the impression that NGOs became "slaves of funding,"[82] and became depoliticised while attempting to market themselves to donors.[83]

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[75] Interview 13.

[76] Interview 3.

[77] Interview 4.

[78] Ibid.

[79] Interview 9.

[80] Interview 4.

[81] Interview 11.

[82] Interview 14.

[83] Interview 9.

However, not only funding created deformations in the civil society, but its absence is expected as well to create more problems! There is a perception that external funding was linked to the two-state solution, which is a diminishing option. Hence there is fear that funding might stop with the vanishing of its drive and the political deadlock.

This discussion shows that the Palestinian civil society has transformed over time to adapt to the changing circumstances. In this process, it lost some of the features that are required for the fulfilment of its role of "change and equilibrium". Namely, it sidelined the significant non-political component of serving its ethical duty based in the totality of human considerations, and avoid the reduction of the civil life-world to the political realm. This reduction serves as a comfort zone in the conditions of the crisis resulting from the colonial condition, and the nature of political powers in Palestine. Leaving the comfort zone requires a self-rejuvenation of civil society is needed, but it ought to be reminded of it, because making a leap outside the comfort zone is not an intuitive decision.

Tools for overcoming the challenges: knowledge production?

Civil society is evidently not playing its role and fulfilling its moral duty to facilitate individual and collective participation in shaping the future, i.e. in self-determination. While this situation has multiple causes and arose in a complex set of circumstances, it is not a fate, but overcoming it requires the combination of collective work with conviction under a leadership that has a vision.[84]

Overcoming the deadlock in civil stagnation and in politics requires a lucid view, one that is grounded in reality, but looking beyond the status quo of things and doctrines. This is not necessarily to suggest a paradigm shift, but rather to at least contemplate the operational paradigm.

Civil society is, theoretically, a source of legitimacy for the state for as long as it represents the "real" and the "moral", and serves "change and equilibrium". However, if it does not fulfil these functions, it stops being legitimate itself, and if it relies instead on its legality, it will render itself secondary and subordinate to the political power, which in Palestine is not even the "least of all evils", but rather worse.

This is why it is inevitable for the Palestinian civil society to think, and reflect not only on how bad things stand, but on the perspective of a better life. This is its duty, which requires producing "organic" home grown knowledge, not only disseminating it, or collecting and sorting information about the current impasse. In other words, civil society needs to strategize, and in knowledge production this means to theorise, albeit this task seems farfetched in the current state of the art.

There is no serious comprehensive knowledge production. There exists sporadic knowledge production, and attempts for production about right, self-determination, and the future. Knowledge production is not accumulative, like the NGO projects and funding: spread out and not productive. The main reason for this is the absence of a political unifying and guiding leadership.[85]

The existing knowledge production in CSOs is not significant. "They ask questions, but do not produce programmes, or strategies."[86] The absence of significant knowledge production "results from the depoliticization of knowledge, starting with the lack of a political societal

[84] Interview 6.

[85] Interviews 9 and 10.

[86] Interview 9.

discussion."[87] In addition the lack of political leadership, and a political incubator, prevents a critical intellectual societal discussion.[88] Such a discussion should analyse and unravel the civil society and pose the hard questions,[89] and produce critical knowledge.[90] There is a need for a vibrant civil society, political leadership,[91] and national research centres (not donor funded ones).[92]

The above stipulated diagnosis (by civic actors) is sufficient to conclude what is needed: a comprehensive, serious, based on public debate, politicised, organised, autonomous, and free process of knowledge production. However, it is not clear where the ingredients and requirements (capacity) for such a process will come from, and how they should be utilised. Some answers are clear: "education", "critical emancipatory education", "local knowledge and expertise", and the list goes on to show that the ingredients exist, and need not be imported. What seems to be missing is the conviction in the necessity of such a process, and maybe the habit to engage, and even immerse in knowledge production, in imagination, and in intellectual exercise.

Upon inquiring from dialogue participants about what does it take to adopt a broader understanding of self-determination, they iterated the need to find and comprehend a way to demystify the concept, and connect it to daily reality, to daily tasks and issues,[93] to develop an understanding that is connected to an emancipatory view, cantered around self-determination,[94] to instrumentalise the concept in the framework of localising civil society's strategies and workplans, develop them by ourselves, "and not by 'consultants'", so that we can work on what we need to work on. [95]

In the end analysis, the autonomy of civil society dictates that it develops its own tools to bring itself up to the fulfilment of its functions. The tutelage of political powers, and the drive towards "best practices", especially supported by donors, and the need to negotiate civil agendas with global political agendas, rendered knowledge production secondary within the Palestinian civil society. This has taken enough toll, that many civic actors (representatives of the civil society) do not even realise their own "unfreedom" that results from sufficing with choosing between the existing knowledge supply, or even resorting to the existing applications, rather than developing their own tools via praxis, which combines knowledge production and organic belonging to the constituency. Nonetheless, there is enough recognition of the problem to initiate a process, or rather a tradition, of producing knowledge and exchanging it instead of adopting externally produced knowledge.

[87] Interview 4.

[88] Interview 5.

[89] Interview 9.

[90] ibid.

[91] Interviews 10 and 12.

[92] Interview 10.

[93] Interview 1.

[94] Interview 5.

[95] Interview 14.

Conclusion

There is agreement that reducing the understanding of self-determination to its national (statist) component contradicts the mission and the raison d'etre of civil society, and cannot encompass the elements of the declared agendas of CSOs, including the set of freedoms and rights, and the active civic participation in shaping the destiny of the nation. However, civic actors did not express readiness to adopt the broadened concept in their activism, but on multiple occasions, they were sincere about their eagerness for further discussions and debates, and about their conviction that such debates are necessary on a broad scale.

The outcome of this round of dialogues is not surprising. Civic actors are bounded by public sentiment, mainstream discourse, the political crises, and the accompanying civic stagnation. Their agenda has many subtitles, but only one heading: ending the occupation, and negotiating the conditions of daily life meanwhile. This is a manifestation of the colonisation of mind – a typical syndrome in the colonial condition.

The resulting narrowed strategies are not challenged due to the absence of relevant actors, such as political parties that have agendas beyond the colonised reality (an absence that is shared amongst the civil and the political components of the Palestinian nation). There is no alternative leadership so to speak, hence everyone stays in a comfort zone, where there is no room for radical challenges.

However, unrealised, or ignored challenges still challenge. Civil society needs to embrace its broader emancipatory duty that looks at the future. For this, it needs to overcome certain mishaps that occurred through its byzantine history, rejuvenate itself, and make a leap towards fulfilling the role of the designer of social life rather than an executer of a perceived design. In this context it should maintain its organic nature by producing all that is needed to reproduce itself maintaining its raison d'etre. This requires, foremost, the production of relevant knowledge in relevant formats.

The prevalence of questions of life and death, along with the ubiquity of a de-secularised outlook in the everyday, and absence of political perspectives led to stagnation of civic initiative, and deterioration in the leadership quality of civic actors – the ability to listen and lead, rather than listen to follow (the popular drive, or the political mainstream).

However, in spite of this stiffness, there are indicators on a will to move towards change, albite a receiving audience is needed. The main felt obstacle to engage in changing the prevailing mantra is the dictate of the reality of here and now, and the feeling of powerlessness in what concerns the future, because it seems unattainable. It is quite telling that civil society in Palestine is not questioning the fact of being the fulfiller of the role of its counterparts – the political power. This deformation amounts to the inability, when the day after comes, of civil society to act on its duties, and fulfil its moral obligations (as we witnessed during the emergence of the PA, and during and after the Arab Dignity Revolutions).

Exiting this situation is not simple, but achievable. Civic actors do feel accountable, and they are ready to act, but need a conducive environment for this action, the cornerstone of which is recognition. The proposal is ambitious, and targets the value system of the Palestinian society at large, with civil society being the main change actor in this endeavour. The proposed change is geared towards reintroducing the ethical component of social organisation. This ethical component shall replace conformity, and has to be rationalised, comprehended, and internalised, rather than adopted. It cannot be limited in one issue or manifestation, but rather has to be comprehensive, touching on human life and not this or that aspect of it.

For this to happen, praxis rather than practice, and critical education are needed. An education embedded in praxis will aim to replace training, propose rationality in place of "coolness", conviction in place of belief, work instead of the job, and self-satisfaction instead of evaluation.

Policy Implications

In terms of policy concerning research and knowledge production, there is need to foster the civic transformative function, and reinstitute the ethical duties of civil society – to act on the emancipation of Palestinians from all kinds of dominance, including tutelage. In Kantian terms the proposed duty is "enlightenment, that is, the human being's emancipation from its self-incurred immaturity."[96] However, to support people in their emancipation endeavour, civil society needs itself to be seeking emancipation.

Such a task requires a high degree of autonomy for researchers to choose their topics and research agendas as long as they fit in the general and broad range of civic led transformation. This will allow some to make the leap and emerge from under the weightiness of the status quo.

There is a general trend in the academia to publish in a certain type of journals that pushes researchers to work in issues that are either less relevant to the civic transformative function. The trend is mostly driven by considerations of competition. One partial solution to this problem, in academic institutions, is support for the fostering and creation of alternative competitive edges for them in areas that coincide with their civic duties. In other CSOs, the development of research capacity should be on top of the agenda, with attention to the quality of research, and ensuring that enough attention and effort are given to theorisation. In the first instance, collaborative work with academic institutions can be a practical track: for example, institute special scholarship funds to support civil society actors to take academic retreats (leading or not leading to a degree).

Relevant modes of grant accountability need to be developed. Something other than quantifiable outputs, and measurable outcomes, etc. One solution can be to move the accountability from the recipient individual to the recipient institution, and frame it in a reflexive format, rather than a result-oriented one. If we are seeking the fostering of intellectual capacity (i.e. thinking), then attention should be made solely to the process and not the results, because fixing the results of thinking is stagnation by definition.

The above also means the need to open the formats of grant making. No policy orientation, or empirical evidence, or community based, etc. direction should be stipulated. Only such requirements as coherence, and adherence to emancipatory values can serve as criteria for selection and accountability. Thematic delineation should also be avoided.

Recommendations[97]

1. Encourage debate about the nature of self-determination: This can take the form of sponsoring workshops and conferences to discuss the concept of self-determination; support development of curricula and public awareness campaigns that emphasize the interconnectedness of individual, communal, and national self-determination; support CSOs in integrating this broader understanding into their advocacy and programming.

[96] Immanuel Kant, "An Answer to the Question: What is Enlightenment?" In *Toward Perpetual Peace and Other Writings on Politics, Peace, and History* by Immanuel Kant, ed., Pauline Kleingeld, trans., David L. Colclasure (New Haven: Yale University Press, 2006 [1874]), 22.

[97] This section is based on suggestions from colleagues, especially Hadil Ayoub, and discussions with them.

2. Strengthen civil society's capacity to produce organic, home-grown knowledge through supporting research centres that focus on critical, emancipatory knowledge production.
3. Address the reluctance to produce knowledge by: (a) supporting and promoting programmes that integrate knowledge production in their structures; (b) supporting informed public debate on strategic issues rather than "hot topics"; and (c) consider supporting the initiation of specific programmes of critical theoretical nature that are attractive to civic actors.
4. Address the depoliticization of civil society by supporting initiatives that reconnect civil society with its emancipatory and transformative role. This includes encouraging CSOs to adopt politically informed strategies trough maximizing on funding that ensures alignment of programmes with societal needs and priorities, and independence from donor agendas; and encourage adopting rights-based approaches that link individual and collective rights in the framework of self-determination.
5. Rebuild Trust in Civil Society: address the erosion of public trust in CSOs by supporting the prioritization of community-driven projects, and encouraging CSOs to engage with their constituencies through participatory decision-making processes.
6. Support theorisation on alternative political models by funding research and pilot projects that explore alternative political and economic models beyond the traditional nation-state framework; and supporting pilot projects that test innovative approaches to economic development, social organization, and political participation.
7. Prioritize initiatives and projects that address the root causes of the Palestinian struggle and build the capacity for the day after (not only in Gaza). Encourage donors to align their funding with the broader goals of self-determination and emancipation, rather than narrow, issue-specific agendas.
8. Minimise the impact of donor funding by adopting more flexible and less prescriptive funding models that allow CSOs to maintain their independence and align their work with the priorities of their constituents.
9. Foster international solidarity and advocacy by supporting networks that can advocate for Palestinian self-determination and support civil society's efforts to challenge the colonial condition. One example is supporting partner initiatives between Palestinian CSOs and international organizations working on human rights, anti-colonialism, and social justice.

Needless to say, special attention should be given to Gaza, which suffers dire humanitarian need that has to be prioritised. However, it is crucial that Gazans are not left with sole humanitarian support that can only guarantee bare life. It is inevitable to attend to the reformation and rejuvenation of CSOs in Gaza and support their capacity to play a central role. The war has prepared some grounds for rejuvenating the role of civil society, and this should be built on.

Works Cited

Anderson, B. 2006. *Imagined Communities: Reflections on the Origin and Spread of Nationalism*. 2nd Edition. London, New York: Verso.

An-Na'im, A. A. 1999. *Proselytization and Communal Self-Determination in Africa.* New York: Orbis Books.

Baxi, U. 2020. "'The Dust of Empire': the Dialectic of Self-Determination and Re-colonisation in the First Phase of the Cold War." In *International Law and the Cold War*. Edited by Matthew Craven, Sundhya Pahuja and Gerry Simpson. 379-413. New York: Cambridge University Press.

Dana, T. 2015. "The Structural Transformations of Palestinian Civil Society: Key Paradigm Shifts." *Middle East Critique* 24 (2). 191-210.

Fisch, J. 2010. *The Right of Self-Determination of Peoples: The Domestication of an Illusion.* New York: Cambridge University Press.

Gramsci, A. 1992. *Prison Notebooks (Vol. I)*. New York: Columbia University Press.

Gramsci, A. 1996. *Prison Notebooks (Vol. II)*. New York: Columbia University Press.

Gramsci, A. 2007. *Prison Notebooks (Vol. III)*. New York: Columbia University Press.

Habermas, J. 1987. *The Theory of Communicative Action, Volume 2: Lifeworld and System: A Critique of Functionalist Reason*. Translated by Thomas McCarthy. Boston: Beacon Press.

Habermas, J. 1989. *The Structural Transformation of the Public Sphere: An Inquiry into a Category of Bourgeois Society.* Translated by Thomas Burger. Massachusetts, Cambridge: MIT press.

Jarrett, C. 2017. "Different nationalities really have different personalities." *BBC Future*. April 13. https://bit.ly/4lHYuQT (accessed 8 May 2022).

Kant, I. 2006 [1874]. "An Answer to the Question: What is Enlightenment?" In *Toward Perpetual Peace and Other Writings on Politics, Peace, and History*. By Immanuel Kant. Edited by Pauline Kleingeld. Translated David L. Colclasure. 17-23. New Haven: Yale University Press.

Merriam-Webster. n.d. "self-determination." *Merriam-Webster.com Dictionary* https://www.merriam-webster.com/dictionary/self-determination (accessed 4 April 2022).

Etymonline. n.d. "Self-determination." *Etymonline (Online Etymology Dictionary)* https://www.etymonline.com/search?q=self-determination (accessed 13 June 2022).

Pashukanis, E. B. 1980. "Selections from the Encyclopaedia of State and Law." In *Pashukanis: Selected Writings on Marxism and Law*, translated by Peter B. Maggs. Edited by Piers Beirne and Robert Sharlet.165-185. London: Academic Press.

Rousseau, J. J. 2002 [1762]. *The Social Contract; and, The First and Second Discourses.* Edited by Susan Dunn. New Haven and London: Yale University Press.

Schulz, M and Suleiman, L. 2020. "Palestinian NGOs' Changed Work Dynamics: Before, During, and beyond the Oslo Process." *Middle East Critique* 29 (4). 433-449.

Taylor, C. 1990. "Modes of Civil Society." *Public Culture 3* (1). 95-118.

Wallerstein, I. 2004. *World-Systems Analysis: An Introduction.* Durham, London: Duke University Press.

Wehmeyer, M. 2004. "Beyond Self-Determination: Causal Agency Theory." *Journal of Developmental and Physical Disabilities* 16 (4). 337–359.

Weitz, E. D. 2015. "Self-Determination: How a German Enlightenment Idea Became the Slogan of National Liberation and a Human Right." *The American Historical Review 120* (2). 462-496.

Wood, E. M. 2017. "The Uses and Abuses of 'Civil Society'." In *Karl Marx*. By Kevin B. Anderson. Edited by Bertell Ollman. London: Routledge.

Interviews

Interview 1, by Omar Qassis and Rania Qadi, Ramallah, 7 October 2024.

Interview 2, by Omar Qassis, Ramallah, 7 October 2024.

Interview 3, by Omar Qassis, Ramallah, 23 October 2024.

Interview 4, by Ahmad Atallah and Mudar Kassis, Ramallah, 27 October 2024.

Interview 5, by Omar Qassis, Ramallah, 25 October 2024.

Interview 6, by Ahmad Atallah. Omar Qassis, and Mudar Kassis, Ramallah, 3 October 2024.

Interview 7, by Omar Qassis, Ramallah, 31 October 2024.

Interview 8, by Omar Qassis, Ramallah, 25 October 2024.

Interview 9, by Ahamd Atallah, Bethlehem, 21 October 2024.

Interview 10, by Ahamd Atallah, Bethlehem, 21 October 2024.

Interview 11, by Omar Qassis, Online, 7 November 2024.

Interview 12, by Omar Qassis, Ramallah, 2 October 2024.

Interview 13, by Omar Qassis and Rania Qadi, Online, 14 October 2024.

Interview 14, by Omar Qassis, Online, 24 October 2024.

Interview 15, by Omar Qassis, Ramallah, 13 October 2024.

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